

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1355

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO LAND SUBDIVISIONS; AMENDING CHAPTER 13, TITLE 50, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 50-1335, IDAHO CODE, TO PROVIDE THAT CERTAIN SUBDIVISIONS OF LAND ARE EXEMPT FROM SUBDIVISION REQUIREMENTS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 13, Title 50, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 50-1335, Idaho Code, and to read as follows:

50-1335. SUBDIVISION REQUIREMENTS -- EXEMPTION. Provided that the method of sale or other disposition is not adopted for the purpose of evading the provisions of this chapter, and subject to any requirements that may be adopted by the board of county commissioners regarding documentation of the proper use and implementation of the provisions of this section, this chapter shall not apply to a division of land made outside of platted subdivisions for the purpose of a single gift or sale to a member of a landowner's immediate family, subject to the following requirements:

(1) A member of the immediate family is limited to any person who is a natural or adopted child, stepchild, spouse, sibling, grandchild, grandparent, or parent of the landowner;

(2) The purpose of the division is to provide for the housing, business, or agricultural needs of the grantee;

(3) The land shall have been titled in the name of the grantor, or in the name of a trust controlled by the grantor, for a combined period prior to the division of no less than five (5) years for land titled before July 1, 2026, or ten (10) years for land titled on or after July 1, 2026. Parcels created under this section shall be titled in the name of the immediate family member for whom the division is made for a period of no less than five (5) years, or for no less than one (1) year if the parcel was created before July 1, 2026, unless the parcels are subject to involuntary transfer, including but not limited to foreclosure, death, judicial sale, condemnation, or bankruptcy;

(4) No parcel smaller than five (5) acres created under this section shall be further divided unless the owner obtains a subdivision permit pursuant to this chapter; and

(5) Where the landowner is a business entity and eighty percent (80%) of the ownership interest or shares in the business entity are held by, or in the name of a trust controlled by, individuals related by blood or marriage, the sale or gift may be made subject to the provisions of this section to an immediate family member of any shareholder who has owned at least five percent (5%) of the outstanding shares for at least five (5) years continuously before the date of the sale or gift.

1 SECTION 2. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.